

**CHAPTER xxvii.**

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Dudley with reference to the supply of heat by means of hot water and steam the central collection of house refuse in connection with certain of their housing estates and the acquisition maintenance and use of Dudley Castle to make further provision for the improvement health and local government of the borough and for other purposes. [31st July 1947.]

WHEREAS the borough of Dudley (in this Act referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses thereof (in this Act referred to as "the Corporation"):

And whereas it is expedient to empower the Corporation to supply heat by means of hot water or steam in certain areas in the borough and to premises in parts of the urban district of Coseley after the acquisition by them of the land on which such premises are constructed or erected:

And whereas it is expedient to empower the Corporation in connection with the development by them of certain lands in the borough and in the same parts of the said urban district of Coseley to undertake the collection of house refuse from premises therein and to make arrangements with the local authority of the said urban district in relation thereto:

And whereas by an indenture dated the twenty-third day of November one thousand nine hundred and twenty-five and made between the Right Honourable William Humble Earl of Dudley of the one part and the Corporation of the other part the castle or ruin known as Dudley Castle together with the

lands and grounds adjoining or adjacent thereto and together with certain other premises in the said indenture referred to were leased to the Corporation for a period of ninety-nine years from the twenty-ninth day of September one thousand nine hundred and twenty-four subject to the covenants and conditions contained in the said lease:

18 & 19 Geo.
5. c. cv.

And whereas the said lease was confirmed and made binding on the parties thereto by the Dudley Corporation Act 1928 and by the said Act certain powers in regard to the control and management of the castle were conferred upon the Corporation:

And whereas the said lease has been determined by mutual consent and since the date of such determination zoological gardens have been established on part of the lands forming the castle and it is expedient that the Corporation should be empowered by agreement to purchase or take a lease of Dudley Castle and any interest or right therein and to manage and maintain the castle grounds and the zoological gardens therein:

And whereas it is expedient that the powers of the Corporation in relation to the improvement health and local government of the borough and other matters should be enlarged as by this Act provided:

And whereas it is expedient that the provisions in regard to the finances of the Corporation which are contained in this Act should be made:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

23 & 24 Geo.
5. c. 51.

And whereas in relation to the promotion of the Bill for this Act the requirements of sections 253 254 and 255 of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Dudley Corporation Act 1947.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Heating undertaking.
- Part III.—Central collection of house refuse.
- Part IV.—Streets and buildings.
- Part V.—Sewers drains &c.
- Part VI.—Infectious disease and sanitary provisions.
- Part VII.—Human food.
- Part VIII.—Sale of coal coke &c.
- Part IX.—Dudley Castle zoological gardens parks &c.
- Part X.—Lands.
- Part XI.—Financial provisions.
- Part XII.—Miscellaneous.
- Part XIII.—General.

PART I.
—cont.
Division of
Act into
Parts.

3. The Lands Clauses Acts except sections 127 to 132 of Incorporation of Lands Clauses Acts. 8 & 9 Vict. c. 18. the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpreta-
tion.

26 Geo. 5. &
1 Edw. 8.
c. 49.

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the county borough of Dudley;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The council” means the council of the borough;

“The town clerk” “the surveyor” “the medical officer” and “the sanitary inspector” mean respectively the town clerk the surveyor the medical officer of health and any sanitary inspector of the council;

“The Minister” means the Minister of Health;

PART I.
—cont.

“ The heating undertaking ” means the undertaking authorised by Part II of this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes ducts apparatus appliances easements rights powers and privileges for the time being belonging to or held used or enjoyed by the Corporation for or in connection with the supply of heat by means of hot water or steam;

38 & 39 Vict.
c. 55.

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same;

1 & 2 Geo.
6. c. 56.

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938;

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;

“ Dudley Castle ” means the castle or ruin known as Dudley Castle together with the land and grounds adjoining or adjacent thereto and other premises which were originally demised to the Corporation under the indenture referred to in section 88 (Confirmation of scheduled deed) of the Dudley Corporation Act 1928 together with the zoological gardens established on part of the said lands and grounds;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

38 & 39 Vict.
c. 83.

“ Authorised security ” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933;

“ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;

41 & 42 Vict.
c. 76.

“ Contravention ” in relation to any enactment byelaw order rule term condition restriction or notice includes a failure to comply with that enactment byelaw order rule term condition restriction or notice and “ contravene ” shall be construed accordingly.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II.

HEATING UNDERTAKING.

5. In this Act the expression “ heating limits ” means the areas described in the First Schedule to this Act.

Heating
limits.

6. The Corporation may supply heat by means of hot water or steam to any premises in the heating limits upon and subject to such terms and conditions as may be agreed between the Corporation and the owners or occupiers of those premises Provided that the Corporation shall not supply heat to any premises in the heating limits outside the borough prior to the acquisition by them of the land on which such premises are constructed or erected.

Supply of
heat in
heating
limits.

7. The Corporation may on lands in the heating limits belonging or leased to them erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing and distributing hot water or steam

Works for
provision of
heat.

PART II.
—cont.

and for producing any material product matter or thing arising or used in the process of such provision of hot water or steam together with such buildings boilers engines machinery sidings matters and things of whatever description as may be required by the Corporation to enable them to provide store and distribute hot water or steam and the Corporation may accordingly on those lands provide store and distribute hot water or steam and may produce such materials products matters and things:

Provided that—

- (a) the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands;
- (b) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted;
- (c) any electrical works or apparatus erected laid down maintained worked and used in pursuance of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Purchase of
land for
heating
undertaking.

9 & 10 Geo. 6.
c. 49.

8.—(1) The Corporation may be authorised by the Minister to purchase land compulsorily for the purposes of the heating undertaking.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

Power to lay
mains &c. and
break open
streets.

8 & 9 Geo. 6.
c. 42.

9.—(1) The provisions of Parts V and VI of the Third Schedule to the Water Act 1945 are hereby incorporated with this Part of this Act.

(2) For the purposes of this Part of this Act in the construction of the enactments incorporated by this section—

“ the undertakers ” means the Corporation;

“ supplying water ” means supplying heat by means of hot water or steam and “ supply of water ” shall be construed accordingly;

“ service pipe ” means a pipe for supplying heat by means of hot water or steam from a main to any premises; and

“ the limits of supply ” means the heating limits and Eve Lane and Parkes Hall Road in the urban district of Coseley.

PART II.
—cont.

(3) Section 18 of the schedule to the Electric Lighting (Clauses) Act 1899 shall apply to the Corporation when exercising the powers of Parts V and VI of the said Third Schedule under this Part of this Act as though the Corporation were a water company. 62 & 63 Vict.
c. 19.

10.—(1) In any premises in which the Corporation supply or propose to supply heat by means of hot water or steam they may provide and may supply by way either of sale or hire any such radiators pipes apparatus and fittings (in this Part of this Act called “ fittings ”) as may be required and may instal repair or alter (but not manufacture) any such fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair or alteration. Power to
supply
fittings.

(2) The Corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings supplied or any materials provided or work done under this section and where the amount does not exceed twenty pounds such charges may be recovered summarily as a civil debt.

(3) Any fittings let by the Corporation for hire and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the Corporation: 1 & 2 Geo. 6.
c. 53.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All fittings supplied by the Corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings to be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

PART II.
—cont.

(5) (a) The Corporation shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund for repayment of moneys so borrowed.

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in each year including interest and any sums carried to a sinking fund shall be separately shown in the published accounts of the Corporation for that year.

(6) If any person wilfully or negligently injures or suffers to be injured any fittings belonging to the Corporation he shall be liable to a penalty not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

Collection and
recovery of
heating
charges.

11.—(1) The Corporation may from time to time prescribe a scale of charges (in this section called “heating charges”) for heat supplied to premises under the powers of this Act and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed to pay the same in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt and subject as hereinafter provided where a person fails to pay within seven days after a demand therefor any instalment of a heating charge payable by him in respect of any premises the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the instalment due:

Provided that if before the expiration of the said seven days notice in writing is given to them that there is a dispute as to the amount due in respect of the heating charge or as to the liability to pay the charge they shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction.

12.—(1) Subject to the provisions of this section any authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter any premises in the heating limits at all reasonable hours—

PART II.
—cont.

Power to enter
premises.

(a) for the purpose of inspecting and examining any fittings whether belonging to the Corporation or not;

(b) for the purpose of ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act;

(c) for the purpose of ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act;

(d) for the purpose of taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the Corporation:

Provided that admission to any premises not being a factory workshop or workplace shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing—

(a) that admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and

(b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises if need be by force:

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and on

PART II.
—cont.

leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

Interference
with
apparatus &c.

13.—(1) If any person either—

(a) wilfully and without the consent of the Corporation;

or

(b) negligently;

turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby causes the supply of heat or hot water or steam to be interfered with he shall be liable to a fine not exceeding five pounds and (whether proceedings be taken against him in respect of his offence or not) the Corporation may recover from him the amount of any damage sustained by them either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

(2) If any person wrongfully takes uses or diverts any heat or hot water or steam from any apparatus provided for the purposes of this Part of this Act he shall (without prejudice to any other right or remedy of the Corporation) be liable to a fine not exceeding five pounds.

Financial
provisions.

14. For the purposes of section 207 (Application of revenue and payment of expenses of undertakings) and section 208 (Separate accounts to be kept) of the Dudley Corporation Act 1928 the heating undertaking shall be one of the Corporation undertakings.

Corporation
not to be
water under-
takers.

15. Nothing in this Part of this Act shall be deemed to constitute the Corporation water undertakers within the meaning of the Water Act 1945 except for the purpose of the section of this Act of which the marginal note is "Power to lay &c. mains and break open streets."

16. All water supplied by the South Staffordshire Waterworks Company to the Corporation for the purposes of this Part of this Act shall be taken by measure and paid for accordingly.

For protection of South Staffordshire Waterworks Company.

17. For the protection of the Bilston Gas Light and Coke Company Limited (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the Corporation and the company apply and have effect:—

For protection of Bilston Gas Light and Coke Company Limited.

- (1) Where the Corporation in exercise of the powers contained in this Part of this Act require to execute any work near to which any main pipe or apparatus belonging to the company has been lawfully placed the Corporation shall except in a case of emergency give to the company not less than three days' notice before commencing to execute such work and the company shall be entitled by their engineer to superintend the work and the Corporation shall conform with such reasonable requirements as may be made by the company for protecting from injury every such main pipe or apparatus and for securing access thereto and shall also if required so to do by the company repair any damage that may be done thereto:
- (2) Where the Corporation find it necessary to undermine but not alter the position of any main pipe or apparatus they shall temporarily support it in position during the execution of their works and before completion provide a suitable and proper foundation for the same where so undermined:
- (3) Nothing in this section shall apply to a pipe for supplying heat by means of hot water or steam from a main to any premises:
- (4) Any difference which may arise between the Corporation and the company under this section shall be determined by arbitration.

18. For the protection of the Dudley Brierley Hill and District Gas Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the Corporation and the company apply and have effect:—

For protection of Dudley Brierley Hill and District Gas Company.

- (1) Where the Corporation in exercise of the powers contained in Part II or Part III of this Act require to execute any work near to which any main pipe or apparatus belonging to the company has been lawfully placed the Corporation shall except in a case of emergency give to the company not less than three

PART II.
—cont.

days' notice before commencing to execute such work and the company shall be entitled by their engineer to superintend the work and the Corporation shall conform with such reasonable requirements as may be made by the company for protecting from injury every such main pipe or apparatus and for securing access thereto and shall also if required so to do by the company repair any damage that may be done thereto:

- (2) Where the Corporation find it necessary to undermine but not to alter the position of any main pipe or apparatus they shall temporarily support it in position during the execution of their works and before completion provide a suitable and proper foundation for the same where so undermined:
- (3) If as a result of the execution of any work by the Corporation in exercise of the powers contained in Part II or Part III of this Act any damage is done to any main pipe or apparatus belonging to the company the company may if they so elect repair such damage and the Corporation shall repay to the company the cost reasonably incurred by them in so doing:
- (4) Nothing in subsections (1) and (2) of this section shall apply to a pipe for supplying heat by means of hot water or steam from a main to any premises or a pipe or duct for collecting house refuse from any premises:
- (5) Any difference between the Corporation and the company under this section shall be referred to arbitration.

PART III.

CENTRAL COLLECTION OF HOUSE REFUSE.

Laying of
pipes and
ducts for
conveyance of
house refuse.

19.—(1) For the purpose of collecting and conveying house refuse from any premises for the time being belonging to the Corporation in respect of which the Corporation may undertake the collection of such house refuse the Corporation may (with the approval of the Minister) lay down maintain and use pipes ducts and other works on lands belonging or leased to them and in through and under highways in the areas referred to in subsection (5) of this section.

(2) The provisions of Parts V and VI of the Third Schedule to the Water Act 1945 are hereby incorporated with this section and in the construction of the said enactments for the purposes of this section—

“the undertakers” means the Corporation;

“ supplying water ” means collecting and conveying house refuse;

“ service pipe ” means a pipe or duct for collecting house refuse from any premises;

“ the limits of supply ” means the areas referred to in subsection (5) of this section.

(3) Section 18 of the schedule to the Electric Lighting (Clauses) Act 1899 shall apply to the Corporation when exercising the powers of Parts V and VI of the said Third Schedule under this Part of this Act as though the Corporation were a water company.

(4) The Corporation and the urban district council of Coseley may enter into and carry into effect agreements for and in respect of the collection of house refuse from premises of the Corporation in the district of the said council and as to the payments to be made to the Corporation by the said council in consideration of any obligations for the removal of house refuse which the Corporation may undertake.

(5) The areas referred to in this section are those described in the First Schedule to this Act and Eve Lane and Parkes Hall Road in the urban district of Coseley.

20. Where the collecting and conveying of house refuse from any premises by means of pipes ducts and other works laid down and used under this Part of this Act involves the use of water supplied by the South Staffordshire Waterworks Company there shall be paid to the said company such additional sum for the use of such water as may be agreed between the said company and the occupier of the premises or (in a case in which the water rates in respect of the premises are paid by the Corporation) such additional sum as may be agreed between the said company and the Corporation or failing agreement in either case such additional sum as may be prescribed by the Minister.

For further
protection
of South
Staffordshire
Waterworks
Company.

PART IV.

STREETS AND BUILDINGS.

21.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

Stopping up
and diversion
of highways.

PART IV.
—cont.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

19 & 20 Geo.
5. c. 17.

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport; and

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

42 & 43 Vict.
c. 49.

23 & 24 Geo. 5.
c. 38.

(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;

(b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that

application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;

- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever:

(7) Provided that—

- (i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of every person having a legal interest in that land is produced to and deposited with the court; and
- (ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the borough.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable.

(10) Any application or order under this section—

- (a) may include two or more highways which are connected with each other;
- (b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway.

PART IV.
—cont.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

(12) The Corporation shall not make an application in pursuance of this section in respect of a trunk road.

Power to
vary width
of carriage-
ways and
footways.

22. The Corporation may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street within the borough repairable by the inhabitants at large (not being a trunk road): Provided that—

- (a) twenty-one days before commencing any work under this section which will materially reduce the width of any carriageway or footway the Corporation shall send notice of the proposed work to the Minister of Transport;
- (b) no alteration shall be made of the portion of a street upon any bridge carrying the street over any railway or the approaches thereto without the consent of the owners of such bridge which consent shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be referred to arbitration.

Provision
for inter-
secting streets.

23.—(1) On the approval of any plan for a new street or new streets submitted to the Corporation under any byelaw or enactment for the time being in force the Corporation may require provision for such intersecting streets as may be reasonably required.

(2) The expression “ intersecting street ” in subsection (1) of this section means a side or cross street forming a junction with another street.

(3) Any person who fails to comply with any requirement of the Corporation under subsection (1) of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Restrictions
on rights
of breaking
up streets.

24.—(1) If not less than three months before commencing any work involving the closing to vehicular traffic of any street or part of a street in the borough either absolutely or to the extent of one-third or more of the width of the carriageway thereof the Corporation shall give notice in writing of their intention to execute such work to all undertakers having statutory powers to break up that street then when such work has been executed by the Corporation it shall not be lawful for any such undertakers within twelve months of the completion of such work to break up the street or part of a street

so closed without the consent of the Corporation which consent shall not be unreasonably withheld and the Corporation may if they think fit and without prejudice to their other rights and powers attach to any consent given under this section such conditions as may be reasonable with respect to the times at which and the period within which the work of the undertakers shall be executed and completed:

Provided that as respects any work executed by any undertakers which but for the provisions of this section would have been lawfully executed nothing in this section shall deprive such undertakers of any right or immunity as between themselves and any person other than the Corporation to which but for the said provisions such undertakers would have been entitled in respect of such work.

(2) Any dispute or difference which may arise between the Corporation and any undertakers under the provisions of the preceding subsection shall be referred to arbitration.

(3) Nothing in this section shall prevent any such undertakers as aforesaid from carrying out extending or enlarging works in any street in case of emergency or prevent any such undertakers from carrying out any works necessary to enable them to perform their statutory duties as such undertakers or their obligations under any contract subsisting at the date of the giving of the notice by the Corporation in default of which they would be liable to any penalty or damages or from making altering repairing extending enlarging or disconnecting communication pipes or service connections or laying service lines between premises and distributing mains or altering repairing extending enlarging or disconnecting any service line or from laying mains or pipes for the supply of property not previously supplied with gas or water as the case may be. In this subsection the expression "service line" has the meaning assigned thereto by the schedule to the Electric Lighting (Clauses) Act 1899.

25.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) in passing to and from such premises the Corporation may either—

Crossings for
horses or
vehicles over
footways.

(a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or

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—cont.

(b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

(3) If the Corporation allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

7 Edw. 7.
c. 53.

(4) Notwithstanding the provisions of section 18 of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof. When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

(6) Before requiring the construction of any carriage-crossing across the footway of a trunk road or allowing the use of such a footway subject to any condition the Corporation shall obtain the consent of the Minister of Transport.

Power to
place fences
near school
entrances &c.

26. For the purpose of preventing danger to pedestrians from traffic the Corporation may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools public baths public parks recreation grounds playing fields alleyways

and passageways exercise the like powers of placing fences rails and posts on the sides of any footways or carriageways of such roads as under section 149 of the Public Health Act 1875 are exerciseable by them as respects roads so repairable and the Corporation may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

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—cont.

27. Any person who shall wilfully or negligently obstruct or interfere with the convenient access to any police telephone call box or police shelter or box or who shall remove or efface any plate or mark indicating the position of such call box shelter or box or any fire hydrant shall be liable to a penalty not exceeding five pounds and the Corporation may recover the expenses of replacement and making good from such person.

Interference
with telephone
call boxes &c.

28. Every person who negligently breaks throws down or otherwise damages any public lamp or lamp post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Corporation shall make full compensation to the Corporation for the damage done and such compensation to an amount not exceeding twenty pounds may (without prejudice to any other right or remedy of the Corporation) be recovered summarily as a civil debt.

Compensation
for injuring
lamps &c.

29.—(1) When any street repairable by the inhabitants at large shall be opened or broken up by any person he shall with all convenient speed complete the work on account of which the same shall have been broken up and fill in the ground and reinstate and make good to the reasonable satisfaction of the surveyor and with materials to be reasonably approved by him the street so opened or broken up.

Streets broken
up to be
reinstated.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

30.—(1) In so far as the Corporation may indicate by notices conspicuously placed on or in proximity to any grass or other area which is situate in or forms part of or adjoins any street and is mown or maintained by the Corporation in an ornamental condition that such area is not intended for use by foot passengers horses cattle or vehicles any person who shall wilfully walk or otherwise proceed or lead ride or drive any horse cattle or vehicle on over or across any such area shall be liable to a penalty not exceeding twenty shillings.

Prohibition
of persons
vehicles &c.
on grass
margins.

(2) Nothing contained in this section shall affect—

(a) the duty of the Corporation under section 58 of the Road Traffic Act 1930;

20 & 21 Geo. 5.
c. 43.

PART IV.
—cont.

(b) the statutory rights of any statutory undertakers with respect to any area which is situate in or forms part of a street.

Fencing of
forecourts.

31.—(1) In any case in which the forecourt of any premises adjoining a street or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger obstruction or inconvenience to the public the Corporation may require the owner of the premises well and sufficiently to fence such forecourt from the street.

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Window
blinds &c.

32.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Corporation the safety and convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Maintenance
of footpaths
&c.

33.—(1) The owner of every house fronting adjoining or abutting on a highway which is not repairable by the inhabitants at large shall maintain the footpath on the frontage of such house and the approach to such house from the highway in accordance with the reasonable requirements of the Corporation.

(2) Any person who contravenes the provisions of this section after receiving notice from the Corporation shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

Demolition
of buildings.

34.—(1) As from the commencement of this section no person shall commence to demolish or take down any building or part thereof within the borough except with the consent of the Corporation which may be given upon and subject to such reasonable terms and conditions as they think fit including terms and conditions requiring—

(a) the shoring up of adjacent buildings; and

- (b) the removal of any material or rubbish resulting from the demolition or taking down and the clearance of the site;

to the satisfaction of the Corporation within a reasonable time to be prescribed by the Corporation:

Provided that this section shall not apply to the demolition or taking down of an internal part of a building if such demolition or taking down is incidental to an internal alteration of the building the use of which it is intended to continue.

(2) Where an application is made to the Corporation under this section for their consent to the demolition or taking down of any buildings or part thereof and such application is accompanied by particulars of such building or part thereof and of the proposals in regard thereto the Corporation shall be deemed to have granted the application unconditionally unless within six weeks from the receipt thereof or within such longer period as the applicant may agree in writing to allow they give notice to him that they have decided to the contrary.

(3) If any term or condition imposed under this section is not complied with within the time therein prescribed the Corporation may themselves enter upon the building and the site thereof and carry out the work and may sell or dispose of any material or rubbish found on the site.

(4) All expenses incurred by the Corporation under subsection (3) of this section may be recovered by the Corporation from the owner of the site of the demolished building.

(5) Any person who contravenes the provisions of this section or of any term or condition imposed under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(6) Nothing in this section shall apply in relation to—

- (a) any poultry-house greenhouse coal shed or cycle shed or other similar structure; or
- (b) any building belonging to any statutory undertakers and held by them for the purposes of their undertaking:

Provided that the exemption conferred by paragraph (b) of this subsection shall not extend to houses or to buildings last used before demolition as offices or showrooms other than buildings so used which form part of a railway station or which are erected on land authorised to be used by the Dudley Brierley Hill and District Gas Company for the manufacture or storage of gas or the working up or conversion of residual products.

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—cont.

As to
neglected
sites.

35.—(1) In this section “neglected site” means the site of a demolished building in the borough which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood.

(2) A court of summary jurisdiction on complaint by the Corporation may order the owner of any neglected site to remove any rubbish resulting from the demolition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may enter upon the neglected site and execute the order.

(4) All expenses incurred by the Corporation under subsection (3) of this section in relation to a neglected site may be recovered by the Corporation from the owner of the neglected site.

Restrictions
on advertise-
ment hoard-
ings.

36.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful after the passing of this Act to erect in or within fifteen feet of any street in the borough any hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The consent of the Corporation under this section shall not be required for a hoarding or similar structure erected within any railway station or upon any property of a railway or canal company for the purposes of such company except in so far as such hoarding or similar structure fronts upon a street repairable by the inhabitants at large.

As to erection
of hoardings
&c. at street
corners.

37.—(1) Before placing or erecting any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding wall or fence shall give notice of his intention so to do to the Corporation and such notice shall be accompanied by plans and particulars of the hoarding wall or fence proposed so to be placed or erected.

(2) If the placing or erection of such hoarding wall or fence would constitute a danger to the traffic in the streets upon adjoining or near to which the same is proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Corporation may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Corporation shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

(5) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925 or by section 1 or section 2 of the Restriction of Ribbon Development Act 1935.

15 & 16 Geo.
5. c. 68.
25 & 26 Geo.
5. c. 47.

38.—(1) The Corporation may by notice in writing require—

Repair of
hoardings &c.

(a) the owner of any hoarding wall or similar structure used for advertising purposes to maintain the same in good order and condition;

(b) the person using any hoarding wall or similar structure for advertising purposes to maintain any advertising matter thereon in good order and condition.

(2) If such owner or other person shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover summarily as a civil debt from such owner or other person any expense incurred by them in so doing.

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—cont.

Prohibition
on use of
unsuitable
land for
erection of
houses.

39.—(1) The Corporation may by order prohibit or restrict—

(a) the erection of buildings intended or adapted for use as houses on any land which in their opinion is liable to flooding; or

(b) the erection of houses on land which in their opinion would by reason of the nature of the subsoil involve danger or injury to health.

(2) Before any order made under this section shall come into force the Corporation shall submit the order to the Minister for his approval and shall give notice of the proposals of the order to the owner of any land affected by the order and by advertisement in a local newspaper circulating in the borough and in the London Gazette and in such other manner (if any) as the Minister may direct.

The said notice shall name a place where copies of the order can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the order may make representations thereon to the Minister and that any such person shall at the same time send a copy of his representations to the town clerk.

(3) The Minister shall consider any order submitted to him by the Corporation and any representations thereon which may be duly made and may approve the order submitted to him with or without modifications or may disapprove the order.

(4) Before approving any such order the Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held.

(5) The Corporation shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed order by advertisement in a local newspaper circulating in the borough and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The order shall take effect as approved by the Minister and shall come into force on a date to be fixed by him.

(7) The Corporation shall give notice of the provisions of any order approved by the Minister under this section by advertisement in a local newspaper circulating in the borough and otherwise in such manner as may be directed by the Minister.

(8) Any person who commits any breach of any order which has come into force under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(9) If at any time it appears to the Corporation that by reason of the execution of works of drainage or for any other reason an order made under this section may properly be revoked in whole or in part or any conditions imposed by such an order may properly be relaxed the Corporation may by order revoke the original order in whole or in part or relax any conditions imposed thereby.

The Corporation if requested by the owner of any land affected shall take into consideration the question of making an order under this subsection and if any difference arises between the Corporation and an owner as to whether the original order ought to be revoked in whole or in part or whether the conditions thereof ought to be relaxed and if so to what extent that difference may be referred by either party to the Minister and the Minister whose decision shall be final may make any order in the matter which the Corporation might have made.

40.—(1) Every chimney erected in the borough after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice in writing given by the Corporation to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably require having regard to the use of such chimney the position of houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Corporation may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

Height of
chimneys.

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating that Act the Corporation shall obtain the consent of the Minister of Civil Aviation,

10 & 11 Geo.
5. c. 80.

(2) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing contained in this section shall extend or apply to any building (not being a house or building used as offices other than a building so used which forms part of a railway

PART IV.
—cont.

station) railway canal or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company or by the company of proprietors of the Birmingham Canal Navigations in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway canal work or land is used or held by such railway company primarily for railway purposes or by the company of proprietors of the Birmingham Canal Navigations primarily for canal purposes.

No buildings
to be erected
until street
formed.

41.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Corporation so to do construct the carriageway of such new street or such part of the new street as may be required by the Corporation in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Corporation shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

55 & 56 Vict.
c. 57.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under the Private Street Works Act 1892 or under the local Acts for the time being in force in the borough.

(3) Any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

As to
termination
of new
streets.

42.—(1) The Corporation may on the deposit of a plan and sections of a new street in pursuance of any byelaw in force in the borough by order prohibit the erection or retention on land belonging to the owner of the land upon which such new street is proposed to be constructed or laid out of any wall or fence at either end of such new street in order to secure means of communication between such new street and any other street or intended street or for the purpose of securing an adequate opening at either end of the new street:

Provided that such prohibition shall not become operative until the streets on both sides of such wall or fence shall become highways repairable by the inhabitants at large.

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—cont.

(2) If any person acts in contravention of any order made by the Corporation under the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

43. The powers conferred upon the Corporation by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so as to enable them (subject to the provisions of that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall for the purposes of safety be rounded off so as to be coincident with the arc of a circle tangential to the adjacent boundaries of the two streets and having such radius as may be determined by the Corporation.

Rounding
of corners
at street
junctions.

44. The Corporation may provide and maintain in any street (including the footway) repairable by the inhabitants at large tubs for trees or plants. Provided that this power shall not be exercised—

Power to
provide tubs
for trees &c.

(a) so as to hinder the reasonable use of the street or footway by the public or any person entitled to use the same or so as to become a nuisance or injurious to any adjacent owner or occupier;

(b) in respect of a trunk road except with the consent of the Minister of Transport.

45. The power of the Corporation under section 15 of the Private Street Works Act 1892 to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under that Act in respect of the said expenses against any premises of which only a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise so be apportioned and charged against any such premises shall be reduced by the amount of the contribution made by the Corporation under this section in respect of such premises.

Extension of
power to
contribute to
expenses of
private street
works.

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—cont.

Amendment
of Private
Street Works
Act 1892 in
relation to
parts of
streets which
are public
footways or
otherwise
repairable by
inhabitants
at large.

46.—(1) In this section the expression “private street works” has the same meaning as in section 6 of the Private Street Works Act 1892.

(2) Notwithstanding anything contained in the Private Street Works Act 1892 where it appears to the Corporation that by reason of additions made otherwise than by the Corporation to an existing footpath bridle-path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) a new street has been formed the Corporation may in respect of such street carry out private street works under the provisions of the Private Street Works Act 1892 and apportion the expenses thereof on the premises fronting adjoining or abutting on such street as if no part of the said street was so repairable.

(3) Notwithstanding anything contained in the Private Street Works Act 1892 the Corporation may under the provisions of that Act carry out private street works throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling within the provisions of subsection (2) of this section the Corporation shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(4) For the purposes of any apportionment under subsection (3) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

Planting of
trees in
private
streets.

47. The Corporation when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the private street works in any such street:

Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the

execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

PART IV.
—cont.

48. If—

(1) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the borough conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and

(2) any expenses of works executed by the Corporation under the Private Street Works Act 1892 in or in relation to that street are apportioned on such part or portion of that land; and

(3) the Corporation are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and

(4) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Private Street Works Act 1892;

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the Private Street Works Act 1892 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

49. Section 112 (As to urgent repairs of private streets) of the Dudley Corporation Act 1928 shall be read and have effect as if the words "thirty pounds" were substituted therein for the words "five pounds."

As to urgent repairs of private streets.

50.—(1) Every undertaking or agreement under seal expressed to be made in pursuance of this section and given by or to the Corporation to or by the owner of any legal estate in land or property on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Corporation and such owner shall be entitled to require from the Corporation a copy of such undertaking or agreement.

Undertakings to bind successive owners.

PART IV
—cont.15 & 16 Geo.
5. c. 22.For protection
of Postmaster-
General.

(2) Any such undertaking or agreement of such owner shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any such undertaking or agreement of such owner shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

51.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under the section of this Act of which the marginal note is "Stopping up and diversion of highways" the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up:—

- (a) The power of the Postmaster-General to remove the line shall be exerciseable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation

and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

PART IV.
—cont.

(2) As soon as the whole or any portion of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) If in relation to the works authorised by the section of this Act of which the marginal note is "Power to vary width of carriageways and footways" or the section of this Act of which the marginal note is "Rounding of corners at street junctions" (which said sections are hereinafter referred to as "the specified sections") the Corporation require an alteration either temporarily or permanently in any telegraphic line belonging to or used by the Postmaster-General the enactments numbered (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration.

(4) If in consequence of the exercise or intended exercise by the Corporation of any of the powers conferred on them by the specified sections the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic line belonging to or used by him and placed in any highway affected by the exercise or intended exercise by the Corporation of any of the said powers the Postmaster-General may himself make such alteration in such telegraphic line as he deems necessary or expedient and the Corporation shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof Provided that—

(a) before making such alteration the Postmaster-General shall give a notice to the Corporation containing particulars of the telegraphic line to be altered and of the nature of the alteration he intends to make;

(b) the Corporation may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a difference shall be deemed to have arisen and sections 4 and 5 of the Telegraph Act 1878 shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just

PART IV,
—cont.

as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Corporation is to be carried out.

(5) Expressions in this section have the same meaning as in the Telegraph Act 1878.

For protection
of statutory
undertakers.

52. For the protection of the Dudley Brierley Hill and District Gas Company the Midland Electric Corporation for Power Distribution Limited the Shropshire Worcestershire and Staffordshire Electric Power Company the South Staffordshire Waterworks Company and the West Midlands Joint Electricity Authority (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

(1) In this section "apparatus" means mains cables wires pipes syphons hydrants meters and other works and apparatus belonging to the undertakers and "position" includes depth:

(2) If it shall be agreed between the Corporation and the undertakers or (in case of difference) determined by arbitration that in consequence of—

(a) the stopping up or diversion under an order made pursuant to the section of this Act of which the marginal note is "Stopping up and diversion of highways" of any highway or any length of a highway; or

(b) the addition to the carriageway of a street under the powers of the section of this Act of which the marginal note is "Power to vary width of carriageways and footways" of any portion of a footway or (in the case of apparatus erected laid or placed on or above the surface of the ground) the addition to the footway of a street under the powers of that section of any portion of a carriageway; or

(c) the construction under the powers of the section of this Act of which the marginal note is "Crossings for horses or vehicles over footways" of a carriage-crossing across the footway of any street or the allowance under the powers of that section of the use as a crossing for any horse or horse-drawn or mechanically propelled vehicle of the footway of any street; or

(d) the rounding off under the powers of the section of this Act of which the marginal note is "Rounding of corners at street junctions" of the

corners of any street which involves the addition to the carriageway of a street of any portion of a street not theretofore forming part of the carriageway thereof;

in under upon or over which any apparatus is situate it is reasonably necessary that any apparatus should be removed or diverted or that the position of any apparatus should be altered or that works (hereinafter referred to as "protective works") for the protection of any apparatus should be executed the undertakers may and (if so required by the Corporation) shall remove or divert or alter the position of or execute protective works in respect of the apparatus according as and in such manner as may be agreed or determined by arbitration and the Corporation shall repay to the undertakers the amount of the costs and expenses reasonably incurred by the undertakers in or in connection with such removal diversion or alteration or the execution of such protective works (which costs and expenses are hereinafter referred to as "the said expenses"):

Provided that if in carrying out any such diversion or alteration of position or the execution of protective works—

(A) (i) the undertakers erect lay or place new apparatus in substitution for their existing apparatus; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus or the execution of such protective works; or

(B) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) or of greater capacity or apparatus of improved type; or

(ii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which such greater depth is reasonably necessary in order to avoid interference with other underground apparatus works or structures;

PART IV.
—cont.

the undertakers shall themselves bear (in the case referred to in paragraph (A) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the undertakers resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in paragraph (B) of this proviso) such proportion of the said expenses as represents the amount by which such expenses exceed the cost which would have been incurred if the dimensions (other than length) or the capacity of the apparatus so laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth as the existing apparatus:

Provided also that where the apparatus had been laid or constructed in under upon or over the part of the highway street or footway affected within the period of two years immediately preceding the giving of the relevant notice required by subsection (4) of this section and at the time of the laying or construction of that apparatus the Corporation had given to the undertakers notice in writing of their intention of exercising the powers necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Corporation if the said powers are exercised by the Corporation in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the undertakers:

- (3) Notwithstanding the stopping up or diversion under an order made pursuant to the section of this Act of which the marginal note is "Stopping up and diversion of highways" of any highway or any length of a highway in under upon or over which highway or length of a highway any apparatus is situate the undertakers shall (unless the apparatus is removed or diverted under the provisions of subsection (2) of this section or unless new apparatus has been laid in substitution therefor) continue to have the same powers and rights in respect of such apparatus as if the land in under upon or over which the same is situate had continued to be part of the highway:

(4) The Corporation shall give to the undertakers not less than twenty-eight days' notice in writing of their intention to exercise any of the powers referred to in subsection (2) of this section with respect to any portion of a highway street or footway in under upon or over which any apparatus is situate and such notice shall be accompanied by a plan and (in the case of the addition of part of the footway to the carriageway) a section showing the nature and extent of the proposals in so far as they relate to any such portion of a highway street or footway as aforesaid:

(5) If within twenty-eight days after the receipt from the Corporation of any notice under subsection (4) of this section of their intention to exercise any such powers as are referred to in that subsection the undertakers give to the Corporation notice in writing of their intention (otherwise than by the requirement of the Corporation) to remove or divert or alter the position of or to execute protective works in respect of any apparatus affected by the exercise of such powers and at the same time deliver to the Corporation a plan section and particulars of any such diversion or alteration of position or particulars of any such protective works (as the case may be) the Corporation shall not exercise the powers referred to in the notice given by them as aforesaid until—

(a) it shall have been agreed between the Corporation and the undertakers or settled by arbitration whether such intended removal diversion or alteration of position of apparatus or the execution of such intended protective works is reasonably necessary; and

(b) the plans sections and particulars of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled:

Provided that if the proposals contained in any notice given to the Corporation by the undertakers under this subsection and any plans sections or particulars delivered to the Corporation with such notice are not disapproved by the Corporation within twenty-eight days after the receipt thereof the said proposals shall be deemed for the purposes of this section to be reasonably necessary and the Corporation shall be deemed to have approved such plans sections or particulars:

PART IV.
—cont.

- (6) Forthwith after the completion of any such removal or diversion or alteration of position of apparatus or of any such protective works the undertakers shall if reasonably required by the Corporation fill in the excavation and make good the surface of the ground to the reasonable satisfaction of the Corporation:
- (7) The Corporation shall not exercise the powers of the section of this Act of which the marginal note is "Planting of trees in private streets" so as to cause damage to or to obstruct or render less convenient the access to any apparatus:
- (8) Any difference or dispute which may arise between the Corporation and the undertakers under this section shall be referred to arbitration.

PART V.

SEWERS DRAINS &C.

Separate
sewers for
sewage and
surface water.

53. For the purpose of facilitating the disposal of surface water and sewage the powers of the Corporation under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the borough to provide separate sewers for the reception of surface water and of sewage respectively.

Water from
buildings
&c. to be
conveyed
to sewers.
15 & 16 Geo. 5.
c. 71.

54.—(1) The powers of the Corporation under section 21 of the Public Health Act 1925 shall extend to authorise them to require the execution and maintenance of such works as may be necessary to convey surface water from premises to which that section applies to some drain sewer or watercourse or the disposal of such surface water in such other manner as the Corporation may require.

(2) It shall be the duty of all owners of land or premises to provide lay and keep in repair such gutters drains channels and other works as may be requisite for complying with section 21 of the Public Health Act 1925 as amended by this section and for the purpose of laying and repairing the same the owner of any land or premises may take up so much of any street as may be requisite and such gutters drains channels and other works shall be laid and thereafter kept in good repair and condition and the street shall be reinstated under the direction of the surveyor and all damage occasioned to the street shall be made good by such owner to the satisfaction of the surveyor.

(3) In the event of default on the part of the owner of any land or premises in complying with the provisions of subsection (2) of this section the Corporation may execute any necessary work and recover the cost of so doing from such owner.

55. Section 81 of the Public Health Act 1936 shall extend to empower the Corporation to make byelaws for preventing slop water from any house or premises from being discharged or thrown or suffered to be discharged or thrown or to pass into any street gully in the borough. Byelaws as to throwing slop water into street gullies.

56,—(1) Where the Corporation resolve to construct a sewer in a street or part of a street within the borough repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Corporation increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the succeeding provisions of this section the expenses incurred by the Corporation in constructing the sewer so far as they do not exceed the sum authorised by this section shall be apportioned by the corporation on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative. Apportionment to frontagers of expenses of sewer constructed under public highway.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the borough but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

(4) The sum apportionable under this section shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

(5) As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

PART V.
—cont.

(6) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(7) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the resolution became operative the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

For the purposes of this subsection—

- (a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;
- (b) any such re-erection alteration or extension of a building as is mentioned in the Third Schedule to the Restriction of Ribbon Development Act 1935 shall be deemed to be the erection of a new building. Provided that references in the said schedule to the date on which the restrictions came into force shall for the purposes of this subsection be construed as references to the date when the resolution became operative.

(8) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(9) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(10) Where such a resolution as is mentioned in this section has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(11) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Corporation or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(12) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Corporation from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

57. If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

As to evasion
by owners
of sewerage
expenses.

(i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and

(ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of the last preceding section of this Act; and

(iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said section of this Act;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land

PART V.
—cont.

on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under the said section of this Act may be recovered and is charged on the premises under the said last preceding section of this Act.

Recovery of
cost of
maintaining
sewers.

58. Section 24 of the Public Health Act 1936 shall within the borough have effect as if the following were substituted for the proviso to subsection (1) of that section:—

“ Provided that unless in the opinion of the medical officer of health or any sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall be given to the owners of any premises known by the local authority to be served by the length of sewer in question not less than seven days before the work is commenced and the local authority shall consider any representations as to the need for and reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice.”

Further
power to
examine and
test drains
&c. believed to
be defective.

59. The powers of section 48 of the Public Health Act 1936 may be exercised in pursuance of any general or special directions given by the Corporation in any case where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance or that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Entry into
premises
in case of
disease.

60.—(1) If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

Provided that the medical officer shall not under the powers of this section—

(a) enter any premises except between the hours of seven in the morning and ten in the evening; or

- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

PART VI.
—cont.

(2) Any person who obstructs the medical officer in the exercise of his power under this section shall be liable to a penalty not exceeding five pounds in addition to any other punishment to which he may be subject.

61.—(1) If the medical officer certifies in writing—

- (a) that any person in the borough (in this section referred to as “the patient”)—

Removal of
infirm and
diseased
persons in
certain cases.

(i) is aged or infirm or physically incapacitated and resides under insanitary conditions or in premises which are insanitary owing to any neglect on the part of the occupier thereof; or

(ii) is suffering from any grave chronic disease; and

- (b) that the patient is unable to devote to himself or to receive from persons with whom he resides proper care and attention; and

- (c) that thorough inquiry and consideration have shown the necessity in the interest of the health of the patient or for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing;

the medical officer may make application under this section to a court of summary jurisdiction.

(2) On any such application the court upon oral proof of the allegations in the certificate and subject (if they think fit) to examination of the patient by a registered medical practitioner nominated by the court may make an order for the removal of the patient to a suitable institution and for his detention and maintenance therein so long as the order remains in force.

(3) Where an order is for the time being in force for the detention and maintenance of the patient in a suitable institution a court of summary jurisdiction acting for the same place as the court which made the order may on the application of the medical officer make a further order for the transfer of the patient to another suitable institution and for his detention and maintenance therein so long as the further order remains in force.

(4) An order made under the foregoing provisions of this section shall unless rescinded under the next following subsection remain in force for such period not exceeding three

PART VI.
—cont.

months as may be determined by the order or such further period or periods each not exceeding three months as may be determined by a further order or orders made on the application of the medical officer by a court of summary jurisdiction acting for the same place as the court which made the original order:

Provided that no such further order shall be made unless the court are satisfied by the certificate of the medical officer or of the medical officer of the institution in which the patient is for the time being detained and such further evidence (if any) as the court may require that the conditions which led to the making of the original order continue or would recur if the patient were no longer detained.

(5) At any time after the making of an order under the foregoing provisions of this section an application for the rescission of the order may be made by or on behalf of the patient to a court of summary jurisdiction acting for the same place as the court which made the order and the court may rescind the order accordingly if having regard to the circumstances of the case they are of the opinion that it is right and proper that it should be rescinded.

(6) No application shall be made under this section unless not less than three clear days' notice of intention to make the application and of the time and place when and where the application will be made has—

- (a) in the case of an application under the last foregoing subsection been given by the patient or other person making the application to the medical officer; and
- (b) in the case of any other application been given by the medical officer to the patient or to some person being in charge or formerly in charge of the patient.

(7) An order under this section may be addressed to such officer of the Corporation as the court making the order may think expedient and any person who wilfully disobeys or obstructs the execution of the order shall be liable to a penalty not exceeding ten pounds.

(8) The cost of the removal or transfer of the patient to or from a suitable institution and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which the patient is so detained the Corporation may and if so required by the court shall make towards the maintenance of the dependants of the patient such contributions as the Corporation think fit or as may be directed by the court as the case may be:

Provided that—

PART VI.
—cont.

- (a) where the institution to which the patient is to be removed is a public assistance institution the authority to whom the institution belongs may in the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the patient and his dependants as may be agreed between that authority and the Corporation; and
- (b) nothing in this subsection shall apply to the cost of maintenance of the patient in a hospital vested in the Minister under the National Health Service Act 1946. 9 & 10 Geo. 6. c. 81.
- (g) The Corporation shall recover from the patient or from any person legally liable to maintain him or from the patient's estate if he has died any costs and expenses incurred by them under subsection (8) of this section or if the Corporation are satisfied that the persons from whom the costs and expenses are under this subsection recoverable cannot reasonably having regard to their financial circumstances be required to pay the whole of such costs and expenses such part thereof (if any) as those persons are in the opinion of the Corporation able to pay.
- (10) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Council so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under this section for the removal or transfer of any person to a suitable institution without the consent in writing of the authority or body having the control thereof and such consent may be given subject to such conditions as may be agreed.
- (11) In this section the expression "suitable institution" means a suitable hospital infirmary or other institution or other suitable place provided within the borough or within a convenient distance of the borough.

62. The Corporation may provide and supply (with or without charge therefor) to any registered medical practitioner antidotes and remedies against any notifiable disease. Supply of antidotes against notifiable disease.

63. Section 82 of the Public Health Act 1936 in its application to the borough shall be extended so as to empower the Corporation to make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in yards and gardens. Byelaws as to burning of refuse.

PART VI.

—cont.

Byelaws as
to tipping
refuse.

64.—(1) Section 81 of the Public Health Act 1936 shall extend to empower the Corporation to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

(2) The Corporation may by any byelaws made by them in pursuance of this section impose on offenders against the same such penalties as they think fit not exceeding the sum of fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Public Health Act 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 inclusive and section 100 of that Act shall apply accordingly.

(4) Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Public Health Act 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for the continuance of his offence after conviction and to a penalty under section 95 of the Public Health Act 1936 (as so applied) for failing to comply with an order or contravening an order. *

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by a railway or canal company for the purpose of constructing widening or maintaining any railway canal dock or wharf works.

Prevention of
smoke from
industrial
furnaces.

65.—(1) No person shall instal in any building whether erected before or after the passing of this Act any furnace for steam raising or for any manufacturing or trade purpose unless such furnace is so far as practicable capable of being operated continuously without emitting smoke.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding two pounds.

to be

(3) If a person before installing in a building a furnace to which this section applies submits to the Corporation plans proposals and particulars of the proposed furnace and furnishes them with such other necessary information in regard

thereto as they may require the Corporation shall within a period of six weeks from the date upon which such plans proposals particulars and information are received by them serve a notice upon such person stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke and if they are so satisfied or if they do not serve a notice upon such person before the expiration of the said period of six weeks no proceedings shall be taken against him under this section in respect of the installation of that furnace in accordance with the plans proposals particulars and information so submitted and furnished.

PART VI.

—cont.

(4) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation or a court shall if either of the parties so desire have regard to cost and to local conditions and circumstances.

66. Section 83 of the Public Health Act 1936 shall within the borough have effect as if the following were substituted for subsection (1) of that section:—

Cleansing
of filthy or
verminous
premises.

“(1) Where it appears to the local authority upon a certificate of the medical officer of health or any sanitary inspector that any premises—

(a) are in such a filthy or unwholesome condition as to be prejudicial to health; or

(b) are verminous;

the authority shall give notice to the owner or occupier of the premises requiring him to take such steps as may be specified in the notice to remedy the condition of the premises—

(i) by cleansing and disinfecting them;

(ii) by distempering or whitewashing the interior surface thereof or in the case of premises used for human habitation or as shops or offices by papering or painting the said interior surface;

and the notice may require among other things the removal of wallpaper or other covering on the walls and in the case of verminous premises the taking of such other steps as may be necessary for the purpose of destroying or removing vermin.”

67.—(1) (a) If the owner of any house or premises occupied therewith within the borough represents to the Corporation that the occupier of such house or premises habitually maintains the same in a filthy condition any officer of the

Vacation of
filthy premises
during
cleansing.

PART VI.
—cont.

Corporation duly authorised in that behalf may enter upon such house or premises and inspect the same and if the Corporation or a committee of the council are satisfied of the truth of the representation of such owner the occupier shall be liable on the complaint of the medical officer to a court of summary jurisdiction to be ordered to vacate the house or premises for such time to be specified in the order as may be reasonably required for remedying the condition of the house or premises by cleansing disinfecting or whitewashing or taking such other steps as may be necessary for such purpose.

(b) Any order made under this section may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

(2) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed not to apply to a house or premises by reason only of the fact that such house or premises have been vacated in compliance with an order made under this section.

(3) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the house or premises.

Prohibition
on sale of
verminous
furniture
or clothing.

68.—(1) No dealer shall sell or expose for sale any second-hand furniture mattresses bed linen clothing or similar articles if the same are to his knowledge infested with bed bugs lice or fleas or if by taking reasonable precautions he could have known the same to be so infested.

(2) Any dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) Any officer of or other person duly authorised by the Corporation in that behalf may enter any premises in which secondhand furniture mattresses bed linen clothing or similar articles are sold or exposed for sale for the purpose of examining whether there be any contravention of the provisions of this section.

(4) Every dealer who refuses to permit any officer or authorised representative of the Corporation to enter any premises or make any inspection which such officer or authorised representative is authorised under the provisions of this section to enter or make or obstructs any such officer or representative in the execution of his duty under such provisions shall be liable to a penalty not exceeding five pounds.

(5) In this section the expression "dealer" means any person (other than a pawnbroker) who trades in secondhand furniture mattresses bed linen clothing or similar articles for reward.

69.—(1) For the purposes of Part II of the Housing Act 1936 any house which is occupied or is of a type suitable for occupation by persons of the working classes the person having control of which fails to keep such house sufficiently repaired and painted and the interior surface of the walls thereof sufficiently papered or distempered with washable distemper of a suitable quality so as to prevent the dilapidation thereof and so as to secure reasonable amenities for the occupier or occupiers shall be deemed to be a house not in all respects fit for human habitation and the powers of the Corporation under the said Part II shall apply in respect of such house accordingly.

PART VI.
—cont.
Further provisions as to working-class houses.
26 Geo. 5. &
1 Edw. 8.
c. 51.

(2) On an appeal to the county court by the person having control of a house upon whom the Corporation have served notice under section 9 of the Housing Act 1936 in consequence of his failure to comply with the provisions of this section the county court judge shall take into consideration—

- (a) if the person upon whom the notice is served is a lessee or agent for a lessee the length of the unexpired period of the lease;
- (b) the period for which the house is likely to continue occupied;
- (c) the expenditure incurred by the person having control of the house or the owner during the preceding three years upon the house;
- (d) whether the condition of the house is or is not due to the wilful default or neglect of the tenant.

70. Section 6 of the Housing Act 1936 shall operate so as to empower the Corporation to make byelaws with respect to houses which are let in lodgings or occupied by members of more than one family for requiring a separate approach to each room or tenement separately occupied without passing through any other room or tenement.

Byelaws as to lodging houses.

71.—(1) As from the commencement of this section every person who shall within the borough carry on the trade or business of a hairdresser or barber shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Corporation for the purpose.

Registration of hair-dressers and barbers and premises.

(2) The Corporation may make byelaws for the purpose of securing—

- (a) the cleanliness of any premises registered under this section and of the instruments towels materials and equipment used therein; and

PART VI.
—cont.

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(3) The person registered shall keep a copy of the byelaws made by the Corporation under this section displayed in the registered premises.

(4) (a) Any officer of the Corporation or other person duly authorised in writing in that behalf by the Corporation and if so required exhibiting his authority shall at all reasonable times be afforded by the person registered full and free power of entry into the registered premises for the purpose of inspecting such registered premises and examining whether there is any contravention of the provisions of this section or any byelaw made thereunder and any such officer or person as aforesaid shall have the like power of entry into any premises in the borough in which the Corporation may have reasonable cause to suppose that the said trade or business is being carried on :

Provided that the powers conferred by this subsection of entering premises for the purpose of examining whether there is any contravention of any byelaw made for the purposes mentioned in paragraph (b) of subsection (2) of this section shall not be exercised by any officer except the medical officer or the sanitary inspector.

(b) Every person who refuses to permit any officer or authorised representative of the Corporation to enter or inspect any premises which such officer or authorised representative is authorised under the provisions of this section to enter or inspect or obstructs any such officer or representative in the execution of his duty under such provisions or under the provisions of any byelaw made under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(5) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on have not been registered in accordance with subsection (1) of this section or whose registration has been cancelled or suspended as hereinafter provided or who contravenes any of the provisions of this section or of any byelaw made thereunder shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound and a court of summary jurisdiction may (in lieu of or in addition to imposing a penalty) order the suspension or cancellation of the registration.

PART VII.

HUMAN FOOD.

72.—(1) As from the commencement of this section the following provisions shall have effect in the borough:—

Registration
of hawkers
of food.

(a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation;

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Corporation may refuse to register any person or premises under this section or (after giving one month's notice in writing to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

(i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food; or

(ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

PART VII.
—cont.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II of that Act or under regulations made thereunder.

(8) In this section the expression "food" does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

Notice of
slaughter of
animal unfit
for food.

73.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to an authorised officer of such intention and shall on the application of an authorised officer within six weeks from the date of such slaughter furnish such information within his knowledge as such authorised officer may reasonably require for the purpose of enabling inquiries to be made to trace the disposition of the carcasses or any part thereof.

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 apply.

PART VII.
—cont.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

1 Edw. 8. &
1 Geo. 6. c. 70.

(5) In this section the expression "authorised officer" means (a) the medical officer (b) the sanitary inspector or (c) any other officer of the Corporation who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act.

74.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the borough in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to
prohibit
persons in
advanced
state of
tuberculosis
from selling
&c. food.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

75.—(1) The occupier of any shop cellar passage or other space forming the whole or part of a building being a shop cellar passage or other space in which food (other than (a) milk (b) meat to which the Public Health (Meat) Regulations 1924 apply and (c) food which is packed in tins or other strongly constructed and impervious cases) is sold or exposed

Precautions
against con-
tamination
of food.

PART VII.
—cont.

for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall take all such steps as may be reasonably necessary to guard against the contamination of such food by flies and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty of forty shillings and to a daily penalty not exceeding ten shillings.

PART VIII.

SALE OF COAL COKE &c.

76. The provisions of sections 20 to 29 inclusive of the Weights and Measures Act 1889 as amended by this Part of this Act and of any byelaws made by the Corporation thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the borough.

77. If any seller of coke or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale wilfully makes any false statement as to the weight of the coke or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded such seller or person in charge shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

78. Every vehicle carrying coal or coke for sale or for delivery on sale shall have the seller's name and place of business together with the words "coal merchant" or "coke merchant" as the case may require or words to the like effect clearly marked and visible on the front of such vehicle.

79. Proviso (a) to section 27 of the Weights and Measures Act 1889 in its application to the borough shall be read and have effect as if in that proviso the words "one mile" were substituted for the words "half a mile."

80.—(1) Any person selling or intending to sell or exposing for sale coal or coke from or on a vehicle otherwise than in sacks and not carrying on such vehicle a weighing instrument of a type approved by the Corporation stamped by an inspector of weights and measures shall sell at one time only the whole load of such coal or coke on such vehicle and shall

Application to sale of coke of Weights and Measures Act 1889. 52 & 53 Vict. c. 21.

Penalty on fraudulent sale.

Requirements as to vehicles carrying coal or coke for sale or delivery on sale.

Amendment of section 27 of Weights and Measures Act 1889 in its application to borough.

As to sale of coal or coke otherwise than in sacks from a vehicle.

be furnished with a ticket or note stating the gross tare and and net weight of such load and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Corporation on demand.

PART VIII.
—cont.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) The provisions of this section shall not apply to the Dudley Brierley Hill and District Gas Company if and so long as the quantity of coke which can be delivered at any one time is restricted to an amount not exceeding one ton by regulations made under the Emergency Powers (Defence) Act 2 & 3 Geo. 6. 1939 or under that Act as amended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945. c. 62. 9 Geo. 6. c. 10.

81. The provisions of this Part of this Act relating to coke shall apply to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke. Application of this Part of Act.

82.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in a newspaper published or circulating in the borough. Notice of Part VIII.

(2) Copies of the newspaper containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART IX.

DUDLEY CASTLE ZOOLOGICAL GARDENS PARKS &C.

83.—(1) The Corporation may purchase or take a lease of Dudley Castle and any interest or right therein for such price or consideration and upon such terms and conditions as may be mutually agreed upon between the Corporation and the owner or owners for the time being or lessees for the time being of Dudley Castle and any interest or right therein and at the date agreed upon for the transfer to take effect the property or interest so transferred shall according to the terms conditions and intent of the agreement for such transfer by virtue of this Act be transferred to and vested in the Corporation together with all the rights powers authorities and privileges of the said owner or owners or lessees in relation to the property or interest so transferred. Purchase or leasing of Dudley Castle by agreement.

(2) If on the exercise by the Corporation of their power under this section to purchase Dudley Castle and any interest or right therein the amount or value of the consideration is

PART IX.
—cont.58 & 59 Vict.
c. 16.

not ascertained at the date agreed upon for the transfer of the property or interest so transferred to take effect the date of the final ascertainment of the amount or value of the consideration shall for the purpose of section 12 of the Finance Act 1895 (which relates to stamp duty in cases of property vested by Act of Parliament) be treated as the date of vesting and if the Corporation in exercise of their power under this section take a lease of the said property the Corporation shall produce to the Commissioners of Inland Revenue either a King's Printer's copy of this Act or a lease embodying the terms and conditions of the lease in either case duly stamped with the ad valorem duty payable upon such a lease of the property such production to take place within three months after the final ascertainment of the terms and conditions aforesaid.

Management
of Dudley
Castle.

84. The Corporation shall have the control and management of Dudley Castle including any other lands from time to time held in connection therewith after they shall have purchased or taken a lease of the same together with all buildings now existing or hereafter erected thereon and subject to the terms and conditions of the conveyance or lease they may exercise the following powers (that is to say):—

- (1) They may improve and extend the lands and buildings and lay out form fence construct and maintain gardens roads footpaths ways walks fences plantations and ornamental lakes and may plant trees and shrubs for the purpose of shelter or ornament and erect provide furnish and equip buildings enclosures terraces pavilions stands lavatories kiosks and seats and purchase or acquire zoological specimens and exhibits:
- (2) They may make such reasonable charges as they may think fit for admission to and for the use of the whole or any part of Dudley Castle and other lands acquired and held in connection therewith and of any buildings and enclosures therein and for the use of chairs and for parking cars and other vehicles in any part of Dudley Castle;
- (3) They may let for a period not exceeding twenty-one years any rights exclusive or otherwise of selling and supplying refreshments to the public resorting to and using Dudley Castle or any portion thereof and other lands acquired and held in connection therewith to which the public have access and may permit the erection for those purposes of such buildings and the enclosure and provision of such space and accommodation as may be requisite or necessary for adequate and proper catering:

- (4) They may set apart and appropriate any portion of Dudley Castle and other lands acquired and held in connection therewith for such purposes of public utility instruction or benefit for such periods and on such terms and conditions as they may think fit:
- (5) They may exercise over and in respect of Dudley Castle and other lands acquired and held in connection therewith any powers conferred upon the Corporation by the Public Health Acts (so far as such Acts relate to public walks and pleasure grounds) and Part IV (Dudley Castle and recreation grounds &c.) of the Dudley Corporation Act 1928:

Provided that the Corporation shall not themselves use any premises to which the provisions of this subsection apply for a cinematograph theatre except for the exhibition of cinematograph films relating to the borough or the functions of local authorities nor shall they grant or let the use of any such premises for the purposes of a cinematograph theatre except on the best terms that can be obtained:

- (6) They may make and construct streets roads and promenades on any part of Dudley Castle and other lands acquired and held in connection therewith and may if they think fit dedicate any such street road or promenade to public use or utilise any part of Dudley Castle and such other lands for the widening and improvement of a highway or take and recover reasonable tolls and charges for the use thereof:
- (7) They may appoint pay and remove officers servants and workmen to perform any services in connection with Dudley Castle and other lands acquired and held in connection therewith:
- (8) If the alteration of any telegraphic line belonging to or used by the Postmaster-General shall be involved in any works of the Corporation under this section the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and the Corporation shall be deemed to be undertakers within the meaning of the said Act:

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands used by them under the powers of this section for the purposes of zoological gardens.

85.—(1) Subject to the provisions of this Act the Corporation may in any park recreation ground or open space belonging to them construct and maintain boating pools together

PART IX.
—cont.

with such buildings works appliances and conveniences as may be necessary or proper in connection therewith.

(2) The Corporation may make such reasonable charges as they may think fit for the admission to and use of any boating pools by this Act authorised to be constructed or any part thereof or any works appliances or conveniences provided in connection therewith or any other buildings erected with the approval of the Minister and the Corporation may if they think fit let any such works appliances conveniences and buildings.

53 & 54 Vict.
c. 59.

(3) The provisions of subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall apply as if a boating pool were a lake or piece of water in a park or pleasure ground provided by the Corporation.

(4) The Corporation may make byelaws for regulating the use of any such boating pool and works appliances and conveniences in connection therewith.

Charges for
and letting
of parks &c.
for games.

86. When any portion of any park or place of public resort or recreation is set apart by the Corporation for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Corporation may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Corporation may think fit:

Provided that nothing in this section shall empower the Corporation to permit at one and the same time the exclusive use of more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks and places.

As to use
of parts of
recreation
grounds for
parking
places.

87.—(1) The provisions of section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 shall extend to enable the Corporation from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating to the utilisation for parking places of land not forming part of a street shall mutatis mutandis apply and have effect for the purposes of this subsection.

(2) The provisions of section 90 of the Road Traffic Act 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section. PART IX.
—cont.

88. No power conferred upon the Corporation by the preceding sections of this Part of this Act shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person. Saving for trusts
covenants &c.
in conveyances
and leases.

PART X.

LANDS.

89. The Corporation on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reservation
of easements
&c.

90. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act. Purchase of
lands for
exchange.

91. The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired by the Corporation under the provisions of any general or local enactment from time to time in force in the borough with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange. Power to
reinstate
owners of
property.

92.—(1) The Corporation may advance money to the purchaser or lessee of any lands acquired from or let on lease by them for the purpose of enabling or assisting him to erect houses shops offices warehouses or other buildings on such Power to
Corporation
to advance
money for
erection of
buildings.

PART X.
—cont.

lands provided that any advance shall not exceed two-thirds of the amount which in the opinion of the Corporation will be the market value of the interest of such purchaser or lessee in the lands with the intended houses shops offices warehouses or other buildings erected thereon.

25 & 26 Geo. 5.
c. 40.

(2) Every such advance shall be repaid with interest at a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935 within such period not exceeding thirty years from the date of the advance as may be agreed upon between the Corporation and the purchaser or lessee.

(3) The repayment may be made either by equal instalments of principal or by an annuity of principal and interest combined and all payments on account of principal and interest shall be made at such periods not exceeding half a year as may be agreed between the said purchaser or lessee and the Corporation.

(4) Any such purchaser or lessee to whom an advance has been made may at any of the usual quarter days after one month's written notice and on paying all sums then due on account of interest repay to the Corporation the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the instrument hereinafter referred to) or a multiple of one hundred pounds (or such less sum as aforesaid) and where the repayment is made by an annuity of principal and interest combined the amount so outstanding and the amount by which the annuity will be reduced when a part of the advance shall be paid off shall be determined by a table to be annexed to the instrument securing the repayment of the advance.

(5) Before making any advance under this section the Corporation shall be satisfied that the repayment to them of the advance is secured by a mortgage of the house shop offices warehouse or other building in respect of the erection of which the advance is made and of the land upon which such building is to be erected or of the lessee's interest therein to the Corporation subject to the right of redemption by the said purchaser or lessee and shall require the said purchaser or lessee to keep the house shop offices warehouse or other building insured against fire to the satisfaction of the Corporation and to produce the receipt for the premium paid in respect of such insurance to the Corporation when required by them and to keep the house shop offices warehouse or other building in good repair.

(6) The Corporation shall have power at all reasonable times to enter the house shop offices warehouse or other building in respect of the erection of which any advance is made by them by any person authorised by them in writing for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are complied with.

PART X.
—cont.

(7) The said purchaser or lessee may with the permission of the Corporation (which permission shall not be unreasonably withheld) at any time transfer his interest in the house shop offices warehouse or other building in respect of the erection of which such advance is made and the land upon which the same is erected but any such transfer shall be made subject to the foregoing provisions of this section.

70

PART XI.

FINANCIAL PROVISIONS.

93.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

Power to
borrow.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

94. Sections 213 and 214 of the Local Government Act 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Application
of Local
Government
Act 1933 to
existing
sinking
funds of
Corporation.

95.—(1) The Corporation may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter period next before the date on which interest on the

Closing of
registers.

PART XI.
—cont.

authorised securities to which such transfer book or register relates is payable.

(2) The persons who on the date on which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

Power to
borrow by
issue of
bonds:

96.—(1) In addition to any other form of borrowing the Corporation may exercise any statutory borrowing power by the issue of bonds to be called “Dudley Corporation bonds” (and in this Act referred to as “bonds”) in accordance with the provisions of this Act.

(2) Where the Corporation raise money by the issue of bonds sections 209 210 211 212 213 and 214 of the Local Government Act 1933 shall apply as if the money had been raised by borrowing by mortgage under that Act and bonds were mortgages within the meaning of that Act.

(3) The provisions set out in the Second Schedule to this Act shall have effect with regard to bonds.

62 & 63 Vict.
c. 9.
7 Edw. 7.
c. 13.
54 & 55 Vict.
c. 39.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

Saving for
Local
Authorities
Loans Act
1945 and for
powers of
Treasury.
8 & 9 Geo. 6.
c. 18.

97. It shall not be lawful for the Corporation to exercise the power of borrowing by the issue of bonds conferred by this Act—

(a) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945; and

(b) so long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order made under the Borrowing (Control and Guarantees) Act 1946 without such consent.

9 & 10 Geo. 6.
c. 58.

98.—(1) The Corporation may give notice to any person being registered as a holder of any authorised security of the Corporation (other than stock) that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register. Provided that if such person give notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless notice in writing to the contrary has been given to the Corporation by any other of them.

(3) The posting by the Corporation of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

99.—(1) The Corporation may if they think fit establish a fund to be called "the insurance fund" with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (in this section referred to as "the specified risks").

Insurance
fund.

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) such a sum as shall in their opinion not be less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks; or

PART XI.
—cont.

(b) if the Corporation insure in some insurance office against the whole or part of all or any of the specified risks such sums as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall re-commence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in respect of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any manner authorised by this or any other Act) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Corporation may if they deem it expedient include in the specified risks risks of accident to any teacher employed in any aided school in the borough.

(8) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in respect of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Local Government Act 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(9) In this section " the prescribed amount " means such sum as may from time to time be prescribed by the Corporation.

100.—(1) The Corporation may establish a fund to be called Capital " the capital reserve fund " for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with any undertaking of the Corporation as from time to time existing from which revenue is derived) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Corporation such sums out of the general rate fund as the Corporation may from time to time deem expedient Provided that—

(a) except as provided by subsection (2) (b) of this section any sum or sums so appropriated or paid to the capital reserve fund from the general rate fund shall not exceed in any financial year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925;

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(b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of fifty thousand pounds but if the fund is at any time reduced below the sum of fifty thousand pounds the Corporation may recommence and continue the appropriations and payments until the fund be restored to the sum of fifty thousand pounds.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

Renewal and
repairs fund.

101.—(1) The Corporation may if they think fit in any year apply from the general rate fund or from the proceeds of the general rate to a fund to be called “ the renewal and repairs fund ” any sum not exceeding the equivalent of a rate of two pence in the pound calculated according to the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed ten thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for—

(a) the provision maintenance and renewal of horses carts mechanically propelled vehicles stables depots boilers equipment and apparatus in connection therewith; and

(b) the maintenance and repair of paths and apparatus in public walks and pleasure grounds and of buildings; and

(c) the maintenance and repair of buildings (not being buildings in respect of which the Corporation are required by the Housing Act 1936 to keep a housing repairs account);

which are not comprised in the undertakings of the Corporation as from time to time existing from which revenue is derived and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

(4) (a) Pending the application of the renewal and repairs fund to the purposes authorised by subsection (3) of this section the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

102.—(1) The Corporation may if they think fit establish a fund to be called "the art fund" to provide for the purchasing of any pictures sculptures or other objects of artistic scientific or historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in the art gallery and museum or other building of the Corporation and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the amount (calculated in accordance with the rules made under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one-fifth of a penny in the pound levied in that year in the borough: Art fund.

Provided that when the art fund shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payments until the said fund be restored to the sum of ten thousand pounds.

(2) (a) Pending the application of the art fund to the purposes authorised in the foregoing subsection the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be carried to and form part of the general rate fund

PART XI.
—cont.

and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the art fund.

Recovery of
rate from
persons
removing.

103. If a justice is satisfied on complaint by any officer of the Corporation duly authorised that any person is quitting or about to quit any premises in the borough and has failed to pay on demand any general rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the Corporation and to detain them until the complaint is determined upon the return of the summons.

As to recovery
of rates from
tenants and
lodgers.

104. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to
operation of
section 11 of
Rating and
Valuation
Act 1925.

105. The Corporation may at any time by resolution determine with respect to any hereditament for the time being belonging to them the rent of which is payable or is collected at intervals of less than a quarter of a year to do any of the things which owners may do by agreement with the rating authority under subsection (2) of section 11 of the Rating and Valuation Act 1925 with the like conditions and consequences (other than the condition as to agreement in writing with the rating authority) as are applicable to owners under that section.

Recovery of
rates from
certain
owners.

106.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the council.

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—cont.

107.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner) of the Corporation to whom or to whose legal personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation or other fund with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Corporation may in all the circumstances think reasonable then at the expiration of that time the Corporation may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in a due course of administration Provided that—

As to payments due to deceased employees.

15 & 16 Geo. 5.
c. 23.
16 & 17 Geo. 5.
c. 60.

9 & 10 Geo. 6.
c. 67.

- (a) the Corporation may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Corporation shall deem it reasonable to allow having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;
- (b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not pay such sum or the balance thereof in their hands to any person other than to the legal personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) The Corporation before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require either—

- (a) a statutory declaration by the person or one of the persons to whom the Corporation may pay and propose to pay such sum or any part thereof in accordance with the provisions of subsection (1) of this section to the effect that the total net estate of the

PART XI.
—cont.

deceased employee (including such sum but after the deduction of debts and funeral expenses) does not exceed one hundred pounds; or

- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

Payment of
funeral
expenses of
deceased
employees.

108. On the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation) or other person to whom or to whose personal representative a sum is due from the Corporation on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest the Corporation may if they think fit pay out of the above sum the funeral expenses of the deceased employee or so much thereof as they consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946 and the amount of the expenses so paid shall be deemed to have been paid for the personal representatives of the person to whom the sum was due from the Corporation and the Corporation and any officer of the Corporation making such payment shall be discharged from all liability in respect of such payment.

As to proof
of continued
existence of
pensioners.

1 Edw. 8. &
1 Geo. 6. c. 68.
7 & 8 Geo. 6.
c. 21.
10 & 11 Geo. 6.
c. 7.

109. Notwithstanding anything contained in the Local Government Superannuation Acts 1937 and 1939 the Corporation shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1944 and 1947 to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

Payment of
pension &c.
of person of
unsound
mind.

53 & 54 Vict.
c. 5.

110.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 as amended by any enactment the Corporation may pay the whole of that sum or so much thereof as they think fit to the institution or person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

(2) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is in the opinion of the Corporation through

—mental infirmity incapable of managing his affairs the Corporation may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of the wife husband or relations of such person.

(3) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund being either a lump sum not exceeding one hundred pounds or an instalment of a periodical payment not exceeding one hundred pounds per annum.

(4) Not less than fourteen days before exercising their power under this section for the first time in relation to any person the Corporation shall give to the Master in Lunacy notice in writing of their intention in that behalf specifying the name and address of that person and the amount, and nature of the sums in respect of which the Corporation intend to exercise the said power and in relation to any person to whom subsection (2) of this section applies the Corporation shall at the same time give notice in writing to that person in a form approved by the Master in Lunacy:

Provided that the Corporation may with the approval of the Master in Lunacy exercise the powers in this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the Master in Lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exerciseable by the Corporation in relation to that person unless and until the master withdraws the notice.

(6) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercise of the said power.

PART XII.

MISCELLANEOUS.

111.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Corporation to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906.

Extension of
section 2 (3)
of Public
Health
(Interments)
Act 1879.
42 & 43 Vict.
c. 31.

PART XII.
—cont.

(2) Any such sum unless applied in any other manner duly authorised shall be invested in statutory securities and the interest thereon applied in maintaining the grave or grave space or monument in such manner as the Corporation think fit.

(3) Any such capital sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to their cemeteries but the said interest shall be paid into the fund to which receipts derived from the cemeteries are paid.

As to main-
tenance of
cemeteries &c.

112. (a) The Corporation may in connection with the maintenance of any cemetery provided under the Public Health Acts or any burial ground provided under the Burial Acts 1852 to 1906 alter repair straighten or maintain any tombstone or monument and put in order and maintain any grave space therein.

(b) Before the Corporation exercise any of the powers of this section they shall publish once at least in each of two successive weeks in one or more newspapers circulating in the borough notice of their intention so to do together with a statement of the works to be carried out and such notice shall also state that any person desiring to object to the carrying out of any such works shall give notice in writing to the Corporation of his objection and the grounds thereof within the date stated in the notice (which date shall not be earlier than ten days after the last publication of the notice) If any objection shall be so given to the Corporation and not withdrawn the works to which the objection relates shall not be carried out without the consent of the Secretary of State.

As to sale
of certain
articles for
animal feed-
ing purposes.

113.—(1) The Corporation may make byelaws for the purposes of regulating the following matters:—

(a) the situation construction and equipment of any premises other than a knacker's yard at which horseflesh or diseased or unsound meat or any product containing any of those substances is sold or is offered or exposed for sale or is in the possession of or deposited with or consigned to any person for the purpose of sale from the premises or of preparation for any such sale as food for any animal or for use in the composition or preparation of any such food; and

(b) the cleanliness and sanitary conditions of such premises and the provision of suitable storage therein for food intended for animal consumption; and

(c) the keeping of accurate records of—

(i) the description quantities and weights of all horseflesh and all meat (whether wholesome or diseased or sound or unsound) and all products

of horseflesh or of such meat as last aforesaid delivered at or sold otherwise than by retail at or from any premises (not being a knacker's yard) at which the sale or offer or exposure for sale of horseflesh or diseased or unsound meat or any product containing any of those substances is carried on;

(ii) the dates at which such deliveries and sales take place; and

(iii) the names and addresses of the persons from whom the articles so delivered are obtained and the persons to whom such sales are made.

(2) For the purposes of this section the expression "horseflesh or diseased or unsound meat or any product containing any of those substances" shall not include any horseflesh or meat or any product containing any of those substances which whilst remaining on the premises is contained in tins effectually sealed.

(3) (a) As from the commencement of this subsection and subject to the provisions of this subsection no premises within the borough (not being a knacker's yard) shall be used for the sale or offer or exposure for sale or deposit or consignment for sale or preparation for sale of horseflesh or diseased or unsound meat or any product containing any of those substances as food for any animal or for use in the composition or preparation of any such food unless such premises are registered under this section for that purpose by the Corporation and a person who uses any premises in contravention of the provisions of this subsection shall be liable in the case of a first offence to a fine not exceeding ten pounds and in the case of a subsequent offence to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding two months or to both such a fine and such imprisonment.

(b) Subject to the following provisions of this subsection the Corporation shall on the application of the occupier or of a person proposing to occupy any premises register those premises for the purposes of this subsection.

(c) If it appears to the Corporation that any premises for the registration of which application has been made under this subsection or which are registered under this subsection do not satisfy the requirements of any byelaws made under subsection (1) of this section or are otherwise unsuitable for use for the purpose for which they are proposed to be used or are being used the Corporation shall serve on the applicant for registration or as the case may be on the occupier for the time being of the premises a notice stating the place and time not

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—cont.

being less than seven days after the date of the service of the notice at which they propose to take the matter into consideration and informing him that he may attend before them with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse the application or as the case may be cancel the registration of the premises.

(d) If a person on whom a notice is served under the last preceding paragraph fails to show cause to the satisfaction of the Corporation they may refuse the application or as the case may be cancel the registration of the premises and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(e) A person aggrieved by the decision of the Corporation under this subsection to refuse to register any premises or to cancel the registration of any premises may appeal to a court of summary jurisdiction.

(f) The provisions of sections 87 88 89 and 90 of the Food and Drugs Act 1938 shall apply in relation to any appeal to a court of summary jurisdiction and any order determination or other decision of a court of summary jurisdiction and any appeal and any decision of the Corporation under this subsection in the same way as they apply in relation to the corresponding proceedings under that Act.

(g) Upon any change in the occupation of premises registered under this subsection the incoming occupier shall if he intends to use them for the purpose for which they are registered forthwith give notice of the change to the Corporation who shall thereupon make any necessary alteration in their register. If a person required to give a notice under this paragraph fails to do so he shall be liable to a fine not exceeding five pounds.

(4) The medical officer the chief sanitary inspector or any other officer of the Corporation appointed for the purpose and producing if so required his authority shall have a right to inspect any records required by any byelaws made under this section to be kept.

(5) Sections 287 and 288 of the Public Health Act 1936 shall apply as if any byelaws made under this section were made under the provisions of that Act.

(6) In this section the expression "horseflesh" has the meaning given to it in subsection (5) of section 38 of the Food and Drugs Act 1938 and the expression "knacker's yard" has the meaning given to it in subsection (1) of section 100 of that Act.

114.—(1) The Corporation may erect and maintain on any open space or public place on or adjoining any highway in the borough such weighbridges or weighing machines and offices in connection therewith as they may consider necessary or desirable for the use of the public.

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—cont.

Power to
erect weigh-
bridges.

(2) The Corporation may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Corporation under the provisions of this section.

(4) The Corporation shall not place a weighbridge on any part of a trunk road without the consent of the Minister of Transport.

(5) The Corporation shall not erect or allow the use of any such weighbridge weighing machine or offices so as to obstruct the access to or exit from any station or depot of a railway company or any canal wharf quay or depot of a canal company.

115.—(1) All steam or waste gas ejected from any stationary engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public.

Ejection of
steam and
waste gas
to annoyance
of public.

(2) Any person who shall cause or permit steam or waste gas or condensing water to be discharged contrary to the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of this section shall not apply to any locomotive used by a railway company.

116.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

Silencers for
internal
combustion
engines.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

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—cont.

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Corporation to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Noise
nuisance.

117.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Public Health Act 1936:.

Provided that no complaint shall be made to a justice under section 99 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case:

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means within the meaning of the said Act of preventing or mitigating it have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

(4) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 of the Local Government Act 1933.

Shelters &c.
for passengers.

118.—(1) The Corporation with the consent of the Minister of Transport may erect and maintain at suitable stopping places on any of the routes along which any person is for the time being authorised to run omnibuses shelters and other accommodation for passengers but shall not use for that purpose any part of a highway which is not vested in the Corporation without the consent of the highway authority which consent shall not be unreasonably withheld and may be given subject to such reasonable terms and conditions as such highway authority may think fit. Any question which may arise as to whether any such consent is unreasonably withheld or whether any such terms or conditions are unreasonable shall be determined by the Minister of Transport.

(2) The Corporation may make byelaws for the regulation use and management of any such shelter and accommodation.

(3) The Corporation may enter and carry into effect agreements with any such person as is referred to in subsection (1) of this section for and in relation to the erection maintenance and use of any such shelters and other accommodation and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(4) (a) If any structure erected by the Corporation under the powers of this section is situated in any highway over any apparatus of any statutory undertakers laid or placed before the erection of the structure and the statutory undertakers give to the Corporation notice in writing of their desire to obtain access to such apparatus the Corporation shall either remove temporarily the structure or so much thereof as shall require to be so removed in order to afford such access or (if the Corporation determine not to remove the structure or part thereof) bear any additional expense due to the existence of the structure which may be reasonably incurred by the statutory undertakers in obtaining such access.

(b) Any difference between the statutory undertakers and the Corporation under this subsection shall be referred to arbitration.

(c) In this subsection the expression "statutory undertakers" means the Dudley Brierley Hill and District Gas Company the Midland Electric Corporation for Power Distribution Limited the Shropshire Worcestershire and Staffordshire Electric Power Company the South Staffordshire Waterworks Company and the West Midlands Joint Electricity Authority.

119.—(1) The Corporation may from time to time make byelaws—

Byelaws as
to pleasure
fairs.

(a) for regulating the hours during which pleasure fairs may be open to the public;

(b) for securing safe and adequate means of ingress and egress to the ground upon which any pleasure fair is held;

(c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section the expression "pleasure fair" means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to

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—cont.

say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing:

Provided that the said expression does not include—

- (a) any fair held by statute charter royal licence letters patent or ancient custom; or
- (b) the zoological gardens and ancillary attractions established and carried on at Dudley Castle.

Power to
grant
allowances
or gratuities
in certain
cases.

12 & 13 Geo. 5.
c. 59.
9 & 10 Geo. 6.
c. 62.

120.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1925 or the National Insurance (Industrial Injuries) Act 1946 and not entitled to benefits under the Local Government Superannuation Act 1937 grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued his employment.

Power to
establish
information
bureaux.

121. The Corporation may establish and maintain or may subscribe towards the establishment and maintenance of an information bureau or information bureaux in the borough for the purpose of supplying information with regard to the borough and neighbourhood and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

Provision of
lectures &c.
in libraries.

122.—(1) The Corporation may use or allow to be used or let any part of any public library provided by them and not at the time required for the purpose of a library for lectures exhibitions concerts displays and the performance of stage plays for or in connection with the advancement of art education drama science music or literature and may themselves provide or arrange for the provision of or contribute towards the expenses of any such lectures exhibitions concerts displays or stage plays and may make or allow to be made such charges as they may think fit in connection therewith:

Provided that no cinematograph film of which—

- (a) the length exceeds two thousand four hundred feet; or
 - (b) the width exceeds sixteen millimetres;
- shall be exhibited under the powers of this section.

(2) The Corporation may provide and sell programmes of any lectures exhibitions concerts displays or stage plays given in pursuance of this section and may provide and sell refreshments in connection therewith.

(3) Nothing in this section shall be taken to dispense with the consent of the Minister of Education to any appropriation lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

(4) No power conferred upon the Corporation by this section shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition or of any enactment relating to the sale of intoxicating liquor or refreshments.

(6) All money received by the Corporation in the exercise of the powers of this section after defraying the expenditure incurred under this section shall be applied only for the purposes of the advancement of art education drama science music or literature.

123.—(1) Any agreement entered into between the Corporation and the parent or guardian of a pupil at any secondary school may make provision for the payment by such parent or guardian to the Corporation of any sum not exceeding ten pounds in the event of the pupil ceasing without reasonable cause to attend such school before the date fixed by such agreement for the pupil to cease such attendance and the Corporation shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend such school to recover from such parent or guardian any sum not exceeding the sum specified in the agreement which the court may think fit to award in all the circumstances of the case.

(2) For the purposes of this section the expression "secondary school" includes—

(a) a secondary school as defined by section 114 of the Education Act 1944; and

PART XII.
—cont.

(b) a school in respect of which grants are paid by the Minister of Education under regulations made in pursuance of paragraph (b) of subsection (1) of section 100 of that Act and in which secondary education as defined by section 8 of the Act is provided.

Collection and
delivery of
washing.

124. The Corporation may collect and may carry to or from any public wash-house provided by them clothes and other articles intended to be washed or which have been washed at such wash-house and when exercising the powers of this section shall make charges for the collection and carriage of such clothes and other articles:

Provided that the charges to be made under this section shall be such as will produce a revenue sufficient to meet all expenditure incurred by the Corporation under this section.

As to
personal
weighing
machines.

125.—(1) In this section the expression “personal weighing machine” means any weighing machine which is used or exposed for use for the purpose of ascertaining the weight of a person—

(a) for the use of which a charge is made; or

(b) which is kept in any shop premises or place in the borough to which the public have access.

(2) The owner or the person in charge of any personal weighing machine which is false or unjust shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(3) A personal weighing machine shall not be used or exposed for use unless it has been examined and approved by an inspector of weights and measures of the Corporation and has been marked with a distinguishing mark by such inspector and after the expiration of twelve months from the coming into operation of this section every person who has in his possession or under his control any personal weighing machine which is not so marked shall be liable to a penalty not exceeding two pounds or in the case of a second or subsequent offence five pounds and the machine shall be liable to be forfeited.

(4) If any person forges or counterfeits or removes any such distinguishing mark as is referred to in the last preceding subsection or knowingly exposes for use any personal weighing machine without any such mark or with such forged or counterfeit mark thereon he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(5) (a) Any inspector of weights and measures of the Corporation may at all reasonable times inspect and examine any personal weighing machine in the borough and may seize and detain any such machine which is liable to be forfeited under the provisions of this section and may for the purposes of such inspection and examination enter any place (whether open or closed) where he has reasonable cause to believe that there is a personal weighing machine which he is authorised to inspect and examine.

(b) Any person who neglects or refuses to produce for such inspection any personal weighing machine in his possession or on his premises or refuses to permit any such inspector of weights and measures to examine the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be liable to a penalty not exceeding five pounds or in the case of a second or any subsequent offence ten pounds.

(6) The Corporation may make byelaws—

- (a) generally with respect to the examination and inspection of personal weighing machines and the distinguishing marks to be fixed to personal weighing machines under this section and the circumstances and conditions in and under which such marks may be affixed or cancelled;
- (b) with respect to the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing machines;
- (c) for fixing the fees to be paid to the Corporation for the examination approval and marking of personal weighing machines under this section or for the examination of such personal weighing machines as are found to be incorrect or defective;
- (d) for fixing the limits of error to be allowed on examination and approval or on inspection and examination of any personal weighing machine under this section.

PART XIII.

GENERAL.

126. Section 298 of the Public Health Act 1936 shall apply to offences created by or under Parts IV (Streets and buildings) V (Sewers drains &c.) VI (Infectious disease and sanitary provisions) VII (Human food) IX (Dudley Castle zoological gardens parks &c.) and XII (Miscellaneous) of this Act as if they were offences created by or under that Act

Restriction
on right to
prosecute.

PART XIII.
—cont.

except that the said section shall not apply to those created by or under the sections of this Act of which the marginal notes are—

“ Interference with telephone call boxes &c.”;

“ Ejection of steam and waste gas to annoyance of public ”;

“ Byelaws as to pleasure fairs ”; and

“ As to personal weighing machines.”

As to
appeals.

127.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) or Part VII (Human food) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the council or a committee of the council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or

other decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken;
- (b) the Corporation shall not execute such work or take such action; and
- (c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

128. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be— Byelaws.

- (a) in the case of byelaws made under the sections of this Act of which the marginal notes are " Boating pools " " Shelters &c. for passengers " and " Bye-laws as to pleasure fairs " the Secretary of State;
- (b) in the case of byelaws made under the section of this Act of which the marginal note is " As to personal weighing machines " the Board of Trade;
- (c) in all other cases the Minister.

129. When any compensation costs damages or expenses is or are by this Act or by any local Act or Order for the time being in force in the borough directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936. Compensation how to be determined.

130. The Minister and the Minister of Transport may hold such inquiries as they consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly. Inquiries.

131. The provisions of the following sections of the Dudley Corporation Act 1928 shall extend and apply to the purposes Application of existing enactments.

PART XIII.
—cont.

of this Act in the same manner as if those provisions were re-enacted in this Act (that is to say):—

Section 215 (In executing works for owner Corporation liable for negligence only);

Section 221 (Breach of conditions of consent of Corporation);

Section 223 (Apportionment of expenses in case of joint owners);

Section 224 (Damages and charges to be settled by court);

Section 235 (Application of section 265 of Public Health Act 1875).

Application
of provisions
of Public
Health Act
1936.

132.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 271 (Interpretation of “provide”);

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 276 (Power of local authority to sell certain materials);

Section 277 (Power of councils to require information as to ownership of premises);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises; power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 293 (Recovery of expenses &c.);

Section 294 (Limitation of liability of certain owners);

Section 295 (Power of local authority to grant charging orders);

Section 296 (Summary proceedings for offences);

- Section 297 (Continuing offences and penalties);
 Section 299 (Inclusion of several sums in one complaint &c.);
 Section 304 (Judges and justices not to be disqualified by liability to rates);
 Section 328 (Powers of Act to be cumulative);
 Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) Part VII (Human food) and Part XII (Miscellaneous) of this Act.

(2) Section 285 of the Public Health Act 1936 shall extend and apply in relation to any local Act for the time being in force in the borough as if such section was re-enacted in that local Act and in terms made applicable thereto.

133.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough. Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement. Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the sections of this Act of which the marginal notes are—

- “Demolition of buildings”;
 “Registration of hairdressers and barbers and premises”;
 “Registration of hawkers of food”;
 “Notice of slaughter of animal unfit for food”;
 “As to personal weighing machines.”

and to subsection (3) of the section of this Act of which the marginal note is “As to sale of certain articles for animal feeding purposes.”

PART XIII.
—cont.

(4) As respects any of the said provisions which require the licensing or registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision came into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) had made application in accordance with the provisions of this Act for such licence or registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is "As to appeals."

Repeal.

134. The following provisions of the Dudley Corporation Act 1928 are hereby repealed:—

Section 117 (Dilapidated and neglected buildings);

Section 118 (As to dangerous buildings);

Section 122 (Means of escape from buildings in case of fire);

Section 123 (Means of ingress and egress from large shops and departmental stores);

Section 132 (Combined drains);

Section 133 (Houses connected with single private drain);

Section 150 (Names of laundrymen to be furnished);

Section 152 (Disinfection in case of tuberculosis);

Section 153 (Regulation dustbins);

Section 163 (Extension of powers of section 72 of Public Health Act 1925);

Section 164 (Byelaws as to transport of food);

Section 165 (Registration of premises used for preparation of potted and preserved foods);

Section 166 (As to inspection of premises used for storage of food);

Section 167 (Medical practitioners to notify cases of food poisoning);

Section 168 (Further powers in relation to unsound food);

Section 170 (Penalty on original vendor of unsound food);

Section 180 (Weight ticket or note on delivery of coke over two hundredweights);

- Section 181 (Weighing instrument or measure to be carried on vehicle);
- Section 182 (Regulating sale of coke under two hundred-weights);
- Section 183 (Power to require weighing or re-weighing of coke and vehicles);
- Section 186 (Mode of raising money);
- Section 188 (Mode of payment off of money borrowed);
- Section 189 (Sinking fund);
- Section 190 (Power to re-borrow);
- Section 197 (Application of money borrowed);
- Section 200 (Receipt in case of persons not sui juris);
- Section 201 (Interest on mortgages held jointly);
- Section 203 (Corporation not to regard trusts);
- Section 204 (Appointment of receiver);
- Section 205 (Protection of lender from inquiry);
- Section 206 (Return to Minister with respect to repayment of debt);
- Section 228 (Service of summons on members of Council);
- Section 230 (Informations by whom to be laid).

135. Where under this Act any question difference or dispute is to be referred to an arbitrator or to arbitration other than questions differences or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question difference or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Application
of Arbitration
Acts 1889 to
1934.

136.—(1) The provisions of the Town and Country Planning Acts and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Saving for
town and
country
planning.

PART XIII.
—cont.

(2) In this section the expression "Town and Country Planning Acts" means—

22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.
9 & 10 Geo. 6.
c. 68.

(a) the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946; and

(b) any public general Act passed or to be passed in the present session repealing amending or extending the provisions of those Acts.

Saving for
indictments
&c.

137. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Crown rights.

138. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

139. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the general rate fund and general rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

HEATING LIMITS AND AREAS IN WHICH PIPES AND DUCTS MAY BE LAID
FOR THE PURPOSES OF PART III (CENTRAL COLLECTION OF HOUSE
REFUSE) OF THIS ACT.

In this schedule the expression "ordnance map" means the
1/2500 ordnance map for the county of Stafford edition of 1919.

A. In the borough—

- (1) An area bounded on the south-west by the Netherton and Halesowen branch of the Great Western Railway on the east by the boundary of the borough on the west by St. Peters Road and Buffery Road and on the north by Sledmore Road and New Rowley Road:
- (2) An area bounded on the south-east and east by the boundary of the borough on the west by the Tansley Hill Colliery (disused) and Rowley Road on the north-west by the enclosures numbered 429 430 and 445 on the ordnance map sheet LXVII.16 and on the north by Oakham Road:
- (3) An area bounded on the west by Pedmore Road on the south in part by the boundary of the borough and in part by Saltwells Road on the north by the Two Locks line and the Dudley Canal of the Birmingham Canal Navigations and on the east by enclosures 996 and 997 on the ordnance map sheet LXXI.8 and an imaginary line running due north from the western boundary of enclosure 997 to the Dudley Canal:
- (4) An area bounded on the north by Saltwells Road on the west by Crabourne Road on the south by Dalvine Road New Village and Lantern Road and on the east by Dudley Wood Road:
- (5) An area bounded on the south-west by the Dudley Canal on the east by Hockley Lane on the south by an imaginary line running due west from the south end of Hockley Lane to the Dudley Canal on the north-east by Church Road and on the north-west by the enclosures numbered 738 769 768 767 and 742 on the ordnance map sheet LXXI.3:
- (6) An area bounded on the west by the boundary of the borough on the north by Himley Road on the south-east by Kingswinford Road and Stourbridge Road on the east by Wellington Road (between Stourbridge Road and Maughan Street) and on the north-east by the footpath from Himley Road to the straining tank of the Corporation and by an imaginary line running due east from the said straining tank to Wellington Road.

1ST SCH.
—cont.

B. In the urban district of Coseley—

- (1) An area bounded on the north-east by Sedgley Road on the south-east by Parkes Hall Road and Eve Lane and on the west in part by Rough Road in part by the southern boundary of enclosure numbered 709 and the eastern boundary of the enclosure numbered 727 on the ordnance map sheet LXVII.7 and in part by the boundary of the urban district of Coseley:
- (2) An area bounded on the south-east by Old Park Road and Wrens Nest Road and Wrens Hill Road on the south-west by Burton Road on the north-west by Eve Lane and Parkes Hall Road and on the east by the enclosures numbered 764 and 766 on the ordnance map sheet LXVII.7.

SECOND SCHEDULE.

PROVISIONS AS TO CORPORATION BONDS.

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the Corporation may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine Provided that bonds shall not be issued at a price lower than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the council house Dudley on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer of the Corporation shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.....

COUNTY BOROUGH OF DUDLEY.

DUDLEY CORPORATION BONDS.

per centum Dudley Corporation bond repayable at par on the19..... at the council house Dudley.

This is to certify that.....
of..... is the registered
holder of a Corporation bond for.....pounds
(£.....) issued by the mayor aldermen and burgesses of
the borough of Dudley under the Dudley Corporation Act 1947
at.....

The corporate seal of the mayor
aldermen and burgesses of the
borough of Dudley was here-
unto affixed in the presence of }

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

7.—(1) The transfer of a Corporation bond shall be by deed in the following form or in a form substantially to the like effect:—

2ND SCH.
—cont.

FORM OF DEED OF TRANSFER.

DUDLEY CORPORATION BONDS.

I in consideration of the sum of..... paid by..... (hereinafter called "the transferee") do hereby assign and transfer to the transferee..... To hold unto the transferee his executors administrators and assigns subject to the several conditions on which I held the same immediately before the execution hereof and I the transferee do hereby agree to accept and take the said..... subject to the conditions aforesaid.

As witness our hands and seals this.....day of..... in the year of our Lord one thousand nine hundred and.....

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by the Corporation and the Corporation shall enter a note thereof in a book to be called the register of transfers of Dudley Corporation bonds and shall endorse on the deed of transfer a notice of that entry.

(4) The Corporation shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Corporation as aforesaid the Corporation shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

8.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

2ND SCH.
—cont.

9. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

10. The production to the Corporation of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the Corporation as sufficient evidence of the grant.

Ch. xxvii.

*Dudley Corporation
Act, 1947.*

10 & 11 GEO. 6.

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